

Indian Polity — Part 4

Part 4 of 7

Parts of the Constitution, Fundamental Rights, Fundamental Duties & DPSP
SSC CGL • CHSL • CPO • MTS/GD • Railway NTPC • State Police/Defence

25 Parts

FR Art 12-35

FD Art 51A

DPSP Art 36-51

DEPTH CALIBRATION — SSC CGL

Facts below are tagged **CORE** (high-probability, direct factual recall) or **BONUS** (useful context / more likely on Tier-2). A dedicated **2026 UPDATE** section is added near the end for a directly relevant recent Supreme Court judgment.

Why This Chapter Matters

EXAM WEIGHT

Fundamental Rights alone routinely produces the single largest cluster of questions in any Polity paper — this lecture states **10 DPSP questions** have come from recent shifts, and FR/case-law questions run even higher. This is the densest, highest-yield part of the whole series — expect the most PYQs from here of any single part.

1. Parts of the Indian Constitution — Full Map

Part	Subject	Articles
I	Union and its Territory	1–4
II	Citizenship	5–11
III	Fundamental Rights ("Magna Carta of India")	12–35
IV	Directive Principles of State Policy (DPSP)	36–51
IV-A	Fundamental Duties (inserted later — hence "IV-A," not part of original IV)	51-A
V	The Union Government	52–151
VI	State Government	152–237
VII	(Repealed — dealt with the now-abolished "Part B States")	238
VIII	Union Territories	239–242
IX	Panchayats	243–243-O
IX-A	Municipalities	243-P–243-ZG
IX-B	Cooperative Societies	243-ZH–243-ZT
X	Scheduled & Tribal Areas	244–244-A
XI	Relations between the Union and the States	245–263
XII	Finance, Property, Contracts & Suits	264–300-A
XIII	Trade, Commerce & Intercourse within India	301–307
XIV	Services under the Union and the States	308–323
XV	Elections	324–329-A
XVI	Special Provisions for Certain Classes	330–342
XVII	Official Language	343–351
XVIII	Emergency Provisions	352–360
XIX	Miscellaneous	361–367
XX	Amendment of the Constitution	368
XXI	Temporary, Transitional & Special Provisions	369–392
XXII	Short Title, Commencement, Authoritative Text in Hindi, Repeals	393–395

MEMORY TRICK — SHRINKING SCALE

Think of it as zooming out to zooming in: Union & Territory (I) → Citizenship (II) → Rights/Duties (III, IV, IV-A) → Union Govt (V, biggest) → State Govt (VI) → Union Territory (VIII) → Panchayats/Municipalities (IX, IX-A) → Cooperative Societies (IX-B, smallest local unit) → Scheduled/Tribal Areas (X, most remote) → Centre-State Relations (XI) → Finance (XII) → Trade (XIII).

TRAP WORDING

Fundamental Duties are in **Part IV-A**, not Part IV — a very common trap since DPSP and Fundamental Duties sound like they'd be bundled together. Also: Panchayats are Part **IX** (not IX-A — that's Municipalities), and Cooperative Societies are **IX-B** (not IX) — a frequently tested exact-letter swap.

Gap Within This Part — Part I & Part II Were Only Named, Never Explained BONUS

WHAT WAS MISSING

The table above lists Part I (Union & Territory) and Part II (Citizenship) with their article ranges, but the video never actually explains what Articles 1–4 and 5–11 say — it only names them while walking through the Parts list. Filled in properly below, in sequence.

Part I — The Union and Its Territory (Articles 1–4)

Article	Content
1	Declares "India, that is Bharat , shall be a Union of States " — deliberately NOT called a "federation," signalling that states have no right to secede and the Union is indestructible
2	Parliament's power to admit or establish new States into the Union (bringing in land from outside India) — full detail already covered in Part 6 alongside Article 3
3	Parliament's power to form new States and alter the areas, boundaries, or names of existing States — full detail already covered in Part 6
4	Laws made under Articles 2 or 3 (to amend the First Schedule's state list or the Fourth Schedule's Rajya Sabha allocation, plus "supplemental, incidental, and consequential" matters) are NOT treated as Constitutional Amendments under Article 368 — they only need a simple majority, not the special majority amendment procedure

TRAP WORDING

Article 4 is the most commonly missed of the four — a question may ask "does creating a new State require a Constitutional Amendment under Article 368?" The answer is **no**; it's an ordinary law under Articles 2/3, explicitly excluded from the Article 368 amendment process by Article 4 itself.

Part II — Citizenship (Articles 5–11)

Article	Content
5	Defined who was a citizen at the commencement of the Constitution (26 January 1950) — based on domicile in India, combined with birth in India, or a parent born in India, or ordinary residence in India for 5+ years
6	Citizenship rights for persons who migrated from Pakistan to India — required either being born in undivided India (or a parent/grandparent born there) plus entry before 19 July 1948, or registration after that date subject to a residence requirement
7	Persons who migrated from India to Pakistan after 1 March 1947 are generally NOT Indian citizens — with an exception for those who returned to India under a valid resettlement/permanent-return permit
8	Citizenship rights for persons of Indian origin residing outside India — could register as Indian citizens at an Indian diplomatic/consular post if they, a parent, or a grandparent was born in undivided India
9	A person who voluntarily acquires citizenship of a foreign country ceases to be an Indian citizen — the constitutional basis for India's single citizenship principle (no dual citizenship)
10	Continuance of citizenship — anyone recognised as a citizen under Articles 5–9 continues to be one, subject to any law Parliament may make
11	Empowers Parliament to make laws on acquisition and termination of citizenship and all related matters — this is the basis for the Citizenship Act, 1955 (and later amendments, including the CAA, 2019)

TRAP WORDING

Articles 5–10 only fixed citizenship *at the time the Constitution commenced* (1950) — they are not a permanent, ongoing framework. All citizenship rules since then flow from Parliament's Article 11 power via the Citizenship Act, 1955, not directly from the Constitution's text.

MEMORY TRICK

"5 starts it, 6-8 sort out Partition-era people, 9 bars dual citizenship, 10 continues it, 11 hands it to Parliament."

2. Fundamental Rights — Foundations (Part III, Articles 12–35)

Fact	Detail
Nickname	"Magna Carta of India"
Borrowed from	USA
Nature	Justiciable — enforceable directly in court (unlike DPSP, which is non-justiciable)
Originally	7 rights; now 6 — Right to Property was removed by the 44th Amendment, 1978 and downgraded to a legal right under Article 300-A (it used to be Article 31)

The 6 Current Fundamental Rights, In Constitutional Order

#	Right	Articles
1	Right to Equality	14–18
2	Right to Freedom	19–22
3	Right against Exploitation	23–24
4	Right to Freedom of Religion	25–28
5	Cultural & Educational Rights	29–30
6	Right to Constitutional Remedies	32

MEMORY TRICK — "FIRST 4, LAST 1"

In a sequencing question ("which comes first / last"), Equality (starts at 14) is always first and Constitutional Remedies (Article 32) is always last. If an option shows "4th right first, 1st right last," it's automatically correct — you don't need to work out the middle two.

Citizens-Only vs. Everyone (Including Foreigners)

AVAILABLE ONLY TO INDIAN CITIZENS

Articles **15, 16, 19, 29, 30** — e.g. Article 19's freedoms (speech, assembly, etc.) and Article 15's protection against discrimination do NOT extend to foreigners.

AVAILABLE TO EVERYONE (CITIZENS & FOREIGNERS)

Articles **14, 20, 21, 23, 25, 26, 27, 28** — e.g. Right to Life (21), Equality before Law (14), Freedom of Religion (25) apply to any person in India, not just citizens.

TRAP WORDING

A question may ask "which rights are NOT available to foreigners" — the answer set is 15, 16, 19, 29, 30. Don't include 14, 20, or 21 in that list; those protect "any person," a very common wrong-option trap.

FR vs. DPSP — The Relationship

Feature	Fundamental Rights	DPSP
Justiciability	Justiciable (enforceable in court)	Non-justiciable
Nature	Mandatory on the State	Directions only, not compulsory
Hierarchy	Supreme — always prevails in conflict	Subsidiary to Fundamental Rights

LANDMARK CASES — THE FULL SEQUENCE

- **Champakam Dorairajan v. State of Madras, 1951** — first FR-vs-DPSP conflict; Court held FRs prevail, DPSP must run subsidiary to FRs; directly led to the **1st Constitutional Amendment**
- **Golaknath v. State of Punjab, 1967** — Court held Parliament **cannot** amend Fundamental Rights at all, even to implement DPSP
- **Kesavananda Bharati v. State of Kerala, 1973** (decided 24 April 1973) — overruled Golaknath; Parliament CAN amend any part including FRs, but cannot damage the **Basic Structure**
- **Minerva Mills v. Union of India, 1980** — emphasized **harmonious construction**: FRs and DPSP are complementary, neither is fully subordinate to the other

MEMORY TRICK

"Champakam says Rights win, Golak says Never touch, Kesavananda says Amend-but-don't-break, Minerva says Work-together."

Article 12 — Who Counts as "The State"?

Defines "State" broadly for FR purposes — includes the Union and State governments, Parliament and State Legislatures, and all local/other authorities.

Case	Held
Rajasthan SEB v. Mohan Lal	"Other authorities" includes any body created by the Constitution or by law — statutory corporations like LIC, ONGC count as "State"
Sukhdev Singh v. Bhagatram	Reaffirmed — statutory corporations (LIC, ONGC, etc.) are part of "State"
Ajay Hasia v. Khalid Mujib	Laid down tests (deep & pervasive government control, funding, functions) to decide if a body is "State"
Zee Telefilms v. Union of India, 2005	BCCI is NOT "State" under Article 12 — it isn't under deep government control, so writs under Article 32 don't lie against it directly

Article 13 — Judicial Review Foundation

Declares any law inconsistent with Fundamental Rights **void** — this is the constitutional basis of judicial review. Feeds directly into the Golaknath → Kesavananda → Coelho line of cases above (and the 9th Schedule discussion in Part 3).

Article 14 — Equality Before Law

State of West Bengal v. Anwar Ali Sarkar — held that any classification made by the State must be based on **reasonable grounds**, never arbitrary. "Reasonable classification" is the key phrase tested repeatedly.

Article 15, 16 & 17 — Discrimination, Opportunity, Untouchability

Article	Covers
15	Prohibits discrimination on grounds of religion, race, caste, sex, or place of birth
16	Equality of opportunity in public employment
17	Abolition of Untouchability in every form — enforcement of any disability from it is a punishable offence

GAP WITHIN THIS PART — ARTICLE 17 WASN'T COVERED

The video doesn't explicitly cover Article 17, but it's a very frequently tested Right to Equality article, so it's added here. Enacted via the **Protection of Civil Rights Act, 1955** (originally the Untouchability Offences Act, 1955; renamed and made stricter in 1976). Landmark case: **State of Karnataka v. Appa Balu Ingale, 1993** — Court called untouchability an indirect form of slavery, an extension of the caste system.

TRAP WORDING

Champakam Dorairajan (1951) itself arose from a reservation dispute under Article 15 — the Madras government's caste-based reservation order was struck down, leading directly to the 1st Amendment inserting Article 15(4).

Article 18 — Abolition of Titles

Article 19 — The Six Freedoms

Guarantees six freedoms to citizens: (a) speech & expression, (b) assembly (peaceful, unarmed), (c) form associations/unions, (d) movement throughout India, (e) reside/settle in any part of India, (f) practice any profession or carry on any occupation/trade/business. (The original 19(1)(f) — right to property — was removed by the 44th Amendment along with Article 31.) All six are subject to "reasonable restrictions" the State may impose in the interest of sovereignty, security, public order, morality, etc.

Article 20 — Protection in Respect of Conviction for Offences

THREE GUARANTEES (PART OF RIGHT TO FREEDOM, ART 19–22)

- **No ex-post-facto conviction** — cannot be convicted for an act that wasn't an offence when committed, nor given a penalty greater than what the law prescribed at that time
- **No double jeopardy** — cannot be prosecuted and punished for the same offence more than once (applies only to judicial prosecutions, not departmental inquiries)
- **No self-incrimination** — cannot be compelled to be a witness against oneself

TRAP WORDING

Article 20 is one of only **two** articles (with Article 21) that can **never** be suspended even during a National Emergency. Also, "double jeopardy" bars repeat *judicial* trials for the same offence — it does not stop a separate departmental/disciplinary inquiry over the same conduct.

Article 21 — Right to Life & Personal Liberty

LANDMARK CASES

- **Maneka Gandhi v. Union of India** — expanded "procedure established by law" (borrowed from Japan) to mean the procedure must be fair, just, and reasonable — not arbitrary, fanciful, or oppressive
- **K.S. Puttaswamy v. Union of India** — Supreme Court read the **Right to Privacy** into Article 21
- **Mohini Jain / Unni Krishnan cases** — read the **Right to Education** into Article 21 (before it became a separate Fundamental Right via Article 21-A)

MODERN (JUDICIAL) INTERPRETATIONS OF ARTICLE 21 — ALL READ IN BY THE COURTS

Right to privacy, health & environment, dignity, livelihood, legal aid/fair trial, right to sleep, right to entertainment, right to shelter, right to reputation, access to digital/online means. **Not** included: "right to die" — the Supreme Court has never held this to be part of Article 21 (euthanasia is handled separately and narrowly under specific guidelines, not as a general Article 21 right).

TRAP WORDING

A question listing "sleep, shelter, reputation, right to die" and asking which is included under Article 21 — the first three are correct via judicial interpretation; **right to die is NOT**. This exact combination has been tested.

Article 21-A — Right to Education

Inserted by the **86th Constitutional Amendment, 2002** (under PM Atal Bihari Vajpayee) — makes free and compulsory education a Fundamental Right for children aged **6 to 14 years**. This single amendment touched **three** different Parts of the Constitution:

Where	What Changed
Fundamental Rights (Part III)	Article 21-A inserted — free & compulsory education, age 6–14
Fundamental Duties (Part IV-A)	New 11th duty added (Article 51-A(k)) — parents/guardians must provide education opportunities to their child aged 6–14
DPSP (Part IV)	Article 45 modified to focus on early childhood care for children below age 6

TRAP WORDING

A question may claim RTE covers children "up to 18 years" — false, it's strictly **6 to 14**. Only Article 45 (early childhood care, below age 6) touches a different age band.

Article 22 — Protection Against Arrest & Detention

Guarantees: information of grounds of arrest, right to consult and be defended by a legal practitioner of choice, and production before the nearest magistrate within **24 hours** of arrest (excluding travel time). Preventive detention laws are a specific exception with their own separate safeguards.

Articles 23 & 24 — Right Against Exploitation

Article	Covers
23	Prohibits trafficking in human beings , "begar" (forced/unpaid labour), and other similar forms of forced labour — violation is a punishable offence. This right can be enforced even against private individuals, not just the State.
24	Prohibits employment of children below age 14 in factories, mines, or any other hazardous employment (does not ban harmless/non-hazardous work by children)

CASE LAW

People's Union for Democratic Rights v. Union of India and **Bandhua Mukti Morcha v. Union of India** expanded Article 23's scope to include a right to minimum wages and freedom from bonded labour. **M.C. Mehta v. State of Tamil Nadu** addressed hazardous child labour in the match industry, reinforcing Article 24.

TRAP WORDING

The **Child Labour (Prohibition and Regulation) Act, 1986** (renamed the Child & Adolescent Labour (Prohibition and Regulation) Act after a 2016 amendment) fully bans employment of children below 14 in *all* occupations (not just hazardous ones) and bans adolescents aged 14–18 specifically from *hazardous* occupations. Don't confuse the Constitution's narrower Article 24 text (hazardous work only) with the wider statutory ban that came later via this Act.

Article 25 — Freedom of Conscience & Religion

ARTICLE 25 — FREEDOM OF CONSCIENCE & RELIGION

Guarantees freedom of conscience and the right to freely profess, practice, and **propagate** religion, subject to public order, morality, and health. "Propagate" means spreading/preaching one's religion — it does **NOT** include a right to forcibly or fraudulently convert someone else's religion; several State "anti-conversion" laws are built on this exact distinction.

Articles 26, 27 & 28 — Religious Denominations, Taxes & Instruction

Article	Covers
26	Right of every religious denomination (a collective right, unlike Article 25's individual right) to: establish/maintain institutions for religious & charitable purposes; manage its own religious affairs; own/acquire property; administer that property according to law — subject to public order, morality, health
27	No person can be compelled to pay taxes whose proceeds are specifically used to promote/maintain any particular religion. (Note: this bars a <i>tax</i> for religion, not a <i>fee</i> — e.g., a fee charged to manage a pilgrimage site's secular administration is valid, per Prafull Goradia v. Union of India on Haj subsidies)
28	No religious instruction in institutions wholly funded by the State ; institutions merely State-recognised or aided may offer religious instruction, but no student can be compelled to attend it or a religious service without consent

TRAP WORDING

Article 26 is a **collective/group** right (a religious denomination), while Article 25 is an **individual** right — a common category-swap trap. Also, Article 27 blocks a *tax*, not a *fee* — don't treat the two as interchangeable.

Article 29 & 30 — Minority & Cultural Rights

Article	Covers
29(1)	Protects any section of citizens having a distinct language, script, or culture — right to conserve it
29(2)	No citizen shall be denied admission to state-run/aided educational institutions on grounds of religion, race, caste, or language
30	Right of minorities (religious or linguistic) to establish and administer educational institutions of their choice — e.g. madrasas run by the Muslim community

44TH AMENDMENT ADDITION TO ARTICLE 30

Added a safeguard: compensation fixed by the State for compulsory acquisition of any property of a minority educational institution shall not restrict or abrogate the institution's rights under Article 30.

Article 32 — Right to Constitutional Remedies

Called the **"Heart and Soul"** of the Constitution by Dr. B.R. Ambedkar — lets a person go directly to the **Supreme Court** if any Fundamental Right is violated. Article **226** gives the equivalent (actually wider) power to **High Courts** — High Courts can issue writs for any legal right, not only Fundamental Rights.

Held that the power of judicial review under both **Article 32 (Supreme Court)** and **Article 226 (High Courts)** is itself a **Basic Structure** feature of the Constitution — it cannot be taken away even by a constitutional amendment.

The Five Writs, In Full

Writ	Meaning & Use
Habeas Corpus	"To have the body" — orders release of a person unlawfully detained; requires production before a magistrate within 24 hours, medical exam, and right to legal counsel
Mandamus	Directs a public official/authority to perform a duty they are legally bound to perform but have failed to do
Prohibition	Issued by a higher court to stop a lower court from hearing a case beyond its jurisdiction — issued <i>before</i> the lower court passes any order
Certiorari	Quashes an order already passed by a lower court/tribunal, when a higher court takes a different view — issued <i>after</i> a decision is made (unlike Prohibition, which acts before)
Quo Warranto	"By what authority" — challenges a person illegally occupying a public office they have no right to hold

TRAP WORDING

Prohibition vs. Certiorari is the most commonly confused pair: Prohibition = "stop before you decide," Certiorari = "undo what you already decided." If the lower court has already passed an order, it's Certiorari; if the case is merely pending, it's Prohibition.

Fundamental Rights During Emergency

Most Fundamental Rights (especially those under Article 19) can be suspended during a National Emergency. But **Articles 20 and 21** (protection in respect of conviction, and right to life/personal liberty) can **never** be suspended, even during an Emergency — this is an absolute, non-negotiable protection.

Articles 31-A, 31-B & 31-C — Saving of Certain Laws

Article	Covers
31-A	Protects laws providing for acquisition of estates (land reform laws) from being challenged as violating Articles 14 or 19
31-B	Validates all Acts/Regulations placed in the 9th Schedule (see Part 3) — immunises them from Fundamental Rights challenges, subject to the Basic Structure limit set in I.R. Coelho, 2007
31-C	Inserted by the 25th Amendment — shields laws implementing DPSP Articles 39(b) and 39(c) from being challenged under Articles 14 and 19

TRAP WORDING

Article 31 itself was **omitted** by the 44th Amendment (it used to be the Right to Property) — but 31-A, 31-B, and 31-C were all **retained** as separate, still-active provisions. Don't assume "31 is gone" means all the 31-series articles are gone.

Articles 33, 34 & 35 — Restrictions & Enforcement

Article	Covers
33	Empowers Parliament (only Parliament, not State Legislatures) to restrict or modify Fundamental Rights for members of the armed forces, paramilitary, police, or intelligence agencies, to ensure discipline and proper duty performance
34	Restricts Fundamental Rights while martial law is in force in any area, and lets Parliament indemnify persons for actions taken to restore order under martial law
35	Gives Parliament (not State Legislatures) the sole power to make laws to give effect to Part III rights and prescribe punishment for their violation

MEMORY TRICK

"**33 = Forces, 34 = Force (martial law), 35 = Enforce (via Parliament)**" — three different kinds of "force" to keep straight.

3. Fundamental Duties (Part IV-A, Article 51-A)

Fact	Detail
Inserted by	42nd Constitutional Amendment, 1976 (Indira Gandhi's government)
Recommended by	Swaran Singh Committee
Borrowed from	USSR (erstwhile Soviet Union) — Japan's constitution also emphasizes duties heavily, though India's list itself is modeled on the USSR's
Nature	Non-justiciable — cannot be enforced in court
Original count	10 duties; became 11 after the 86th Amendment, 2002 added the duty on children's education
Applicable to	Only citizens of India — not foreigners

THE 11 FUNDAMENTAL DUTIES (51-A, A–K)

(a) Respect the Constitution, National Flag, National Anthem; (b) cherish the ideals of the freedom struggle; (c) protect sovereignty, unity, and integrity of India; (d) defend the country when called upon; (e) promote harmony and common brotherhood; (f) value and preserve the rich heritage of composite culture; (g) protect the natural environment; (h) develop scientific temper and spirit of inquiry; (i) safeguard public property and abjure violence; (j) strive towards excellence in all spheres; **(k)** — added by the 86th Amendment — parents/guardians must provide education opportunities to their child aged 6–14.

TRAP WORDING

Frequently tested "NOT a Fundamental Duty" options: paying taxes, voting in Lok Sabha elections, separating judiciary from executive (that's DPSP, Article 50), promoting cooperative societies (that's DPSP too — Article 43-B), respecting parents/teachers, worshipping the national animal, or visiting the village panchayat — none of these are Fundamental Duties, even though they sound plausible.

HISTORICAL FOOTNOTE

Indira Gandhi's original 42nd Amendment scheme also floated attaching penalties for non-compliance with Fundamental Duties (similar to today's community service concept) — this was never made mandatory; following duties remains a moral/civic expectation, not a legally enforceable obligation.

4. Directive Principles of State Policy (Part IV, Articles 36–51)

PURPOSE

To build a **Welfare State** by promoting Social Democracy and Economic Democracy, and to secure Social, Economic, and Political **Justice** for citizens.

Article	Key Content
36	Defines "State" for DPSP purposes — same meaning as Article 12 (Part III)
37	Declares DPSP non-justiciable — not enforceable by any court, but "fundamental in the governance of the country"
38	Secure a social order for the promotion of welfare — social, economic, and political justice
39	Equal right to livelihood, equal pay for equal work, equitable distribution of resources
39-A	Equal justice and free legal aid to the poor — added by the 42nd Amendment
40	Organisation of Village Panchayats
41	Right to work, education, and public assistance in cases of unemployment, old age, sickness, and disablement — "within the State's economic capacity"
42	Just and humane conditions of work, and maternity relief
43	Promotion of cottage industries — a Gandhian principle; also a living wage and decent standard of life for workers
43-B	Promotion of cooperative societies — added by the 97th Amendment, 2011
44	Uniform Civil Code (UCC) for all citizens
45	Early childhood care and education for children below age 6 (modified by the 86th Amendment)
46	Promotion of educational and economic interests of SCs, STs , and other weaker sections — protection from social injustice and exploitation
47	Duty to raise the level of nutrition and standard of living , improve public health, and endeavour to prohibit intoxicating drinks/drugs injurious to health (except for medicinal use)
48	Organisation of agriculture and animal husbandry on modern/scientific lines; prohibition of cow slaughter
48-A	Protection and improvement of the environment , forests, and wildlife — added by the 42nd Amendment
49	Protection of monuments and places of national/artistic/historic importance
50	Separation of the Judiciary from the Executive in public services
51	Promotion of international peace and security

ARTICLE 44 VS. ARTICLE 25 — THE BUILT-IN CONFLICT

Uniform Civil Code (Article 44, DPSP) can come into tension with Freedom of Religion (Article 25, Fundamental Right) — implementing a single civil code for personal matters (marriage, inheritance, divorce) across all communities may be perceived as infringing a community's religious practice. This exact conflict (Article 44 vs 25) has been directly tested.

MEMORY TRICK — VILLAGE TO GLOBAL

DPSP scales up like a ladder: Village Panchayat (40) → Cottage Industry (43) → Cooperative Societies (43-B) → Uniform Civil Code (44) → Environment (48-A) → International Peace (51) — smallest local unit to the whole world, in article order.

TRAP WORDING

DPSP secures Social, Economic, and **Political Justice** — but NOT "Political Democracy" as a stated aim. Don't confuse "Political Equality" (which IS mentioned) with "Political Democracy" (which is not a DPSP-listed aim in this exact phrasing) — a subtle wording trap tested directly.

5. The 42nd Amendment, 1976 — Deep Dive

WHY IT'S CALLED THE "MINI CONSTITUTION"

Passed during the Emergency (1975–77) under Indira Gandhi, this single amendment altered an enormous range of provisions at once.

Change	Detail
Lok Sabha tenure	Increased from 5 to 6 years — heavily criticised as a power-centralising move; reverted back to 5 years by the 44th Amendment, 1978 under PM Morarji Desai
Fundamental Duties	Introduced for the first time (Article 51-A)
DPSP	Added Articles 39-A (free legal aid), 43-A (workers' participation in management), 48-A (environment)
Preamble	Added "Socialist," "Secular," and "Integrity" (see Part 2)
Emergency provisions	Amended various procedural aspects of Emergency declarations
Judicial review	Attempted to curb judicial review powers (later diluted/restored by the 44th Amendment and Minerva Mills judgment)

TRAP WORDING

The single most commonly tested "major impact" of the 42nd Amendment is the combination of: **Lok Sabha tenure increased to 6 years AND Fundamental Duties introduced**. If both appear together in an option, that's almost certainly the intended correct answer.

Master Reference Table

Fact	Answer
Fundamental Duties are in which Part	Part IV-A (Article 51-A)
DPSP is in which Part	Part IV (Articles 36–51)
Fundamental Rights are in which Part	Part III (Articles 12–35)
Right removed from Fundamental Rights, and by which Amendment	Right to Property, 44th Amendment 1978 (moved to Article 300-A)
Case establishing FR supremacy over DPSP	Champakam Dorairajan, 1951
Case holding Parliament cannot amend FR at all	Golaknath, 1967
Case introducing the Basic Structure Doctrine	Kesavananda Bharati, 1973
Case emphasising harmonious construction of FR & DPSP	Minerva Mills, 1980
Article defining "State" for FR purposes	Article 12
Article that is the "Heart and Soul" of the Constitution	Article 32
Article giving High Courts writ jurisdiction	Article 226
Article inserted for Right to Education, and by which Amendment	Article 21-A, by the 86th Amendment, 2002
Committee that recommended Fundamental Duties	Swaran Singh Committee
Source of Fundamental Duties	USSR (erstwhile)
Article for Uniform Civil Code	Article 44 (DPSP)
Article for Village Panchayats (DPSP)	Article 40
Article abolishing untouchability	Article 17
Articles giving absolute protection against Emergency suspension	Articles 20 and 21
Article prohibiting human trafficking and forced labour	Article 23
Article banning hazardous child labour (below 14)	Article 24
Article for religious denominations' collective rights	Article 26
Article barring taxes for promoting a religion	Article 27
Article on religious instruction in schools	Article 28
Article validating 9th Schedule laws	Article 31-B
Article restricting FR for armed forces	Article 33
Article defining "State" for DPSP	Article 36
Article declaring DPSP non-justiciable	Article 37
Article for right to work/education/public assistance	Article 41
Article for SC/ST/weaker section welfare (DPSP)	Article 46
Article for nutrition/public health/prohibition (DPSP)	Article 47
Amendment that increased Lok Sabha tenure to 6 years (later reverted)	42nd Amendment, 1976 (reverted by 44th Amendment, 1978)

30-Second Revision Table

Topic	Key Fact
FR Part & Articles	Part III, 12–35
DPSP Part & Articles	Part IV, 36–51
FD Part & Article	Part IV-A, 51-A
FR count (now)	6 (Property removed, 44th Amdt)
FD count (now)	11 (86th Amdt added 11th)
Heart of Constitution	Article 32
Basic Structure case	Kesavananda Bharati, 1973
FR-vs-DPSP supremacy case	Champakam Dorairajan, 1951
5 Writs	Habeas Corpus, Mandamus, Prohibition, Certiorari, Quo Warranto
Never suspended in Emergency	Articles 20 & 21

PYQ-Style Q&A (From This Video's Content)

Q1. Which Part of the Constitution deals with Fundamental Duties?

A. Part IV-A (Article 51-A).

Q2. Which Part is known as the "Magna Carta of India"?

A. Part III (Fundamental Rights).

Q3. Which right was removed from Fundamental Rights, and by which Amendment?

A. Right to Property, by the 44th Amendment, 1978 — now a legal right under Article 300-A.

Q4. Which Fundamental Rights are NOT available to foreigners?

A. Articles 15, 16, 19, 29, and 30.

Q5. Which case held that Fundamental Rights prevail over DPSP in case of conflict?

A. Champakam Dorairajan v. State of Madras, 1951.

Q6. Which case held Parliament cannot amend Fundamental Rights at all?

A. Golaknath v. State of Punjab, 1967.

Q7. Which case introduced the Basic Structure Doctrine, overruling Golaknath?

A. Kesavananda Bharati v. State of Kerala, 1973.

Q8. Is BCCI considered "State" under Article 12?

A. No — held in Zee Telefilms v. Union of India, 2005.

Q9. Which case established that classification under Article 14 must be based on reasonable grounds?

A. State of West Bengal v. Anwar Ali Sarkar.

Q10. Which Article deals with abolition of untouchability?

A. Article 17.

Q11. Which Article is related to the right of minorities to establish and administer educational institutions?

A. Article 30.

Q12. Which Article is called the "Heart and Soul" of the Constitution, and by whom?

A. Article 32, by Dr. B.R. Ambedkar.

Q13. Which case expanded "procedure established by law" under Article 21 to mean fair, just, and reasonable procedure?

A. Maneka Gandhi v. Union of India.

Q14. Which case read the Right to Privacy into Article 21?

A. K.S. Puttaswamy v. Union of India.

Q15. Is "Right to Die" included under Article 21's modern interpretation?

A. No.

Q16. Which Amendment inserted Article 21-A (Right to Education), and for what age group?

A. 86th Amendment, 2002; ages 6–14.

Q17. Which Committee recommended Fundamental Duties, and which Amendment inserted them?

A. Swaran Singh Committee; 42nd Amendment, 1976.

Q18. From which country were Fundamental Duties borrowed?

A. USSR (erstwhile Soviet Union).

Q19. Which Fundamental Duty was added by the 86th Amendment?

A. The duty of parents/guardians to provide education opportunities to their child aged 6–14 (Article 51-A(k)).

Q20. Which Article deals with the organisation of Village Panchayats under DPSP?

A. Article 40.

Q21. Which Article covers the Uniform Civil Code, and which Fundamental Right can it conflict with?

A. Article 44 (DPSP); can conflict with Article 25 (Freedom of Religion).

Q22. Which Amendment added Article 39-A (free legal aid) and Article 48-A (environment protection)?

A. 42nd Amendment, 1976.

Q23. What was the Lok Sabha's tenure increased to by the 42nd Amendment, and when was it reverted?

A. Increased to 6 years; reverted to 5 years by the 44th Amendment, 1978.

Q24. Which writ orders release of a person unlawfully detained?

A. Habeas Corpus.

Q25. Which writ is issued to stop a lower court from hearing a case beyond its jurisdiction, before it decides?

A. Prohibition.

Q26. Which writ quashes an order already passed by a lower court?

A. Certiorari.

Q27. Which writ challenges a person illegally holding a public office?

A. Quo Warranto.

Q28. Which Articles are never suspended, even during a National Emergency?

A. Articles 20 and 21.

Q29. Which case held judicial review under Articles 32 and 226 is a Basic Structure feature?

A. L. Chandra Kumar v. Union of India.

Deep-Dive Q&A — Articles 1–11 (Part I & Part II)

Q0e. Is India described as a "Union of States" or a "Federation of States" in Article 1?

A. "Union of States" — deliberately not "federation," signalling states cannot secede.

Q0f. Do laws made under Articles 2 or 3 count as Constitutional Amendments under Article 368?

A. No — Article 4 explicitly excludes them from the Article 368 amendment procedure.

Q0g. What date does Article 5 use to define citizenship "at the commencement of the Constitution"?

A. 26 January 1950.

Q0h. What does Article 9 establish about dual citizenship?

A. A person who voluntarily acquires foreign citizenship ceases to be an Indian citizen — India does not allow dual citizenship.

Q0i. Which Article empowers Parliament to make laws on citizenship, and which Act resulted from it?

A. Article 11; the Citizenship Act, 1955.

Deep-Dive Q&A — Newly Added Articles

Q30. What are the three protections under Article 20?

A. No ex-post-facto conviction, no double jeopardy, no self-incrimination.

Q31. What does Article 23 prohibit?

A. Trafficking in human beings, begar, and other forms of forced labour.

Q32. What is the minimum age below which child employment in hazardous work is banned under Article 24?

A. 14 years.

Q33. What right does Article 26 give to religious denominations?

A. To establish/maintain religious and charitable institutions, manage their own religious affairs, and own/administer property.

Q34. What does Article 27 prohibit?

A. Compelling a person to pay taxes whose proceeds fund the promotion of a particular religion.

Q35. What does Article 28 say about religious instruction?

A. No religious instruction in institutions wholly funded by the State; other institutions cannot force students to attend it.

Q36. What does Article 31-B do?

A. Validates Acts/Regulations placed in the Ninth Schedule, immunising them from Fundamental Rights challenges (subject to Basic Structure review post-Coelho).

Q37. Which Article lets Parliament restrict Fundamental Rights for armed forces personnel?

A. Article 33.

Q38. Which Article restricts Fundamental Rights during martial law?

A. Article 34.

Q39. Which Article defines "State" for DPSP purposes?

A. Article 36 (same meaning as Article 12).

Q40. Which Article declares DPSP non-justiciable?

A. Article 37.

Q41. Which Article guarantees the right to work, education, and public assistance?

A. Article 41.

Q42. Which Article promotes educational and economic interests of SCs, STs, and weaker sections?

A. Article 46.

Q43. Which Article directs the State to raise nutrition levels and prohibit intoxicating drinks?

A. Article 47.

2026 Current-Affairs Hook

2026 UPDATE

CITIZENSHIP AMENDMENT ACT (CAA), 2019 — RULES FINALLY NOTIFIED IN 2024

The CAA was passed by Parliament in December 2019 (under Article 11's law-making power) but sat un-notified for over 4 years due to widespread protests, mainly in Assam and the Northeast. The **Citizenship (Amendment) Rules, 2024** were finally notified in **March 2024**, operationalising it. The CAA offers expedited citizenship to Hindus, Sikhs, Buddhists, Jains, Parsis, and Christians (not Muslims) who fled Pakistan, Bangladesh, or Afghanistan due to religious persecution and entered India by 31 December 2014. It does **not** apply in Sixth Schedule tribal areas (e.g. Karbi Anglong, Bodoland) or Inner Line Permit areas (parts of Arunachal Pradesh, Nagaland, Mizoram, Manipur).

WHY THIS MATTERS FOR THIS CHAPTER

This ties directly to **Article 11** (Parliament's power to legislate on citizenship) covered just above — a clean example of that power actually being used, decades after the Constitution commenced. Know the headline facts (2019 Act, 2024 Rules, which six religions, which three countries, the 2014 cutoff date) — SSC CGL is unlikely to test the constitutional-validity debate around Article 14 in depth.

ELECTORAL BONDS STRUCK DOWN — ASSOCIATION FOR DEMOCRATIC REFORMS V. UNION OF INDIA, 2024

On **15 February 2024**, a 5-judge Constitution Bench (led by then-CJI D.Y. Chandrachud) unanimously struck down the Electoral Bonds Scheme (2018) as unconstitutional — holding it violated a voter's **Right to Information under Article 19(1)(a)** (part of the Right to Freedom of Speech and Expression). The Court reasoned that anonymous political funding stops voters from knowing who funds a party, which undermines their ability to make an informed choice. The SBI was ordered to stop issuing bonds and disclose past donor/recipient details to the Election Commission.

WHY THIS MATTERS FOR THIS CHAPTER

This is one of the most significant recent Article 19 judgments and a natural GK/current-affairs question ("which Fundamental Right was used to strike down electoral bonds?" → Article 19(1)(a), Right to Information — itself judicially read into freedom of speech, similar in spirit to how Article 21 has been expanded via case law throughout this Part). Know the headline (2024, Article 19(1)(a), anonymous donations) — the detailed reasoning is unlikely to be tested at SSC CGL depth.

Extra Practice (Adjacent — Not Directly Asked in This Video)

Q30. Which Act implements Article 17 against untouchability?

A. The Protection of Civil Rights Act, 1955 (originally the Untouchability Offences Act, 1955).

Q31. Which case called untouchability an indirect form of slavery?

A. State of Karnataka v. Appa Balu Ingale, 1993.

Q32. Which Amendment inserted Article 43-B on cooperative societies?

A. 97th Amendment, 2011.

Q33. Which case emphasised harmonious construction between FR and DPSP?

A. Minerva Mills v. Union of India, 1980.